

Bad Golf — Terms of Service

Effective date: September 3, 2026 **Last updated:** September 3, 2026

Welcome to Bad Golf. These Terms of Service ("Terms") are a contract between you and **Kevin Wells, an individual doing business as Bad Golf** ("Bad Golf," "we," "us," or "our"), and they govern your use of the Bad Golf mobile application and web app (collectively, the "Service"). By using the Service, you agree to these Terms. If you don't agree, don't use the Service.

We've written these Terms in plain language. Some sections are legally important and use formal language where required.

1. What Bad Golf is (and isn't)

Bad Golf is a golf scorekeeping, GPS and statistics utility. It helps you:

- Track scores during a round of golf
- Keep score in common golf formats — Skins, Nassau, Match Play, Wolf, Vegas and others — using non-monetary points and units
- See how players and teams finished relative to one another
- Save round history and view stats
- View GPS distances and course information

Bad Golf is **not**:

- **A payment service.** The Service does not transfer, hold, escrow or process funds of any kind, and contains no payment feature, payment link, or connection to any payment provider.
- **A gambling or wagering service.** See Section 2.
- **A financial advisor.** The numbers are arithmetic performed on the inputs you provide. Verify them before relying on them.
- **An authoritative source on golf rules.** Use USGA or R&A rules for actual rulings.

2. No wagering, no funds, no prizes

This section describes what the Service does and does not do. It is a material part of these Terms.

- **We do not accept, place, broker, hold, escrow, transfer or settle wagers or stakes of any kind.** The Service has no mechanism to do so.
- **We take no commission, rake, fee, or share of any kind from play.**
- **We award no prizes.** The Service distributes nothing of value to any user.
- **Outcomes are determined by golf performance, not by chance.** Every result the Service reports is arithmetic applied to golf scores that users enter.

- **Points and units have no cash value.** They are display units used for keeping score. They cannot be purchased, redeemed, cashed out, transferred between accounts, or exchanged for anything of value, and they carry no value outside the Service.
- **We are not a party to anything you arrange with other people.** If you and the people you play with make private arrangements of any kind, you do so entirely between yourselves, outside the Service, without our knowledge, involvement or facilitation. Nothing in the Service is offered to enable, encourage or support any such arrangement, and you agree not to use the Service for any purpose that is unlawful where you are.

3. Eligibility

You must be at least 18 years old (or the age of majority in your jurisdiction) to use Bad Golf. By using the Service, you represent that you meet this requirement.

4. Points and units

Scores, formats and standings in the Service are expressed in points and units. As stated in Section 2, these are display units only. They have no cash value, cannot be redeemed or transferred, and are not a currency, a credit, a token, or a store of value.

5. Your responsibility for your rounds

Bad Golf provides scorekeeping tools. It does not adjudicate scores, enforce results, or referee disputes between players. Specifically:

- **Disputes.** If you and another player disagree about a score, a format, or a result, that is between the two of you. The numbers in the app are based entirely on the inputs you provided.
- **Errors.** If the app's arithmetic is wrong, or you enter the wrong scores, or the format settings don't match what you actually played, the resulting output may be incorrect. Always sanity-check the results.
- **Local laws.** You are responsible for your own conduct and for knowing what is lawful where you are.

6. Acceptable use

When using Bad Golf, you agree not to:

- Use the Service in connection with any unlawful activity
- Reverse engineer, decompile, or attempt to access the app's source code beyond what is publicly available
- Use the Service to harass, defame, or harm others
- Attempt to disrupt the Service, our backend infrastructure, or other users' rounds
- Spam, abuse, or pollute the shared course library with false entries

- Submit content that infringes someone else's intellectual property or privacy

We may suspend or remove access to shared features if we determine you have violated these rules.

7. Round codes and shared data

The app uses round codes (for example, "EAGLE42") to sync rounds between phones. Round codes are anonymous and short — anyone with a code can read and modify that round's data. Share your round code only with the people in your group.

You acknowledge that:

- Player names, scores, and other data you enter into a shared round are visible to everyone who has the round code.
- We are not responsible for unauthorized access if your round code is shared, guessed, or otherwise exposed.
- The shared course library is collaborative. Other users may add or correct course data that becomes visible to everyone using the app.

8. Intellectual property

The Bad Golf app, its design, code, name, logo, and content are owned by Bad Golf and protected by copyright, trademark, and other intellectual property laws. You receive a limited, non-exclusive, non-transferable license to use the app for personal, non-commercial purposes.

You retain ownership of the data you enter (player names, scores, courses, notes). By using shared features, you grant us a license to store and display that data as necessary to operate the Service.

9. Disclaimers

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

We do not warrant that:

- The Service will be uninterrupted, error-free, or always available
- Calculations will be free from bugs or rounding errors
- Data will be preserved without loss
- The shared backend will be available at all times
- GPS distances, course data, ratings or slopes will be accurate
- The Service will meet your specific needs or expectations

You use the Service at your own risk.

10. Limitation of liability

TO THE FULLEST EXTENT PERMITTED BY LAW, BAD GOLF AND ITS OWNER, EMPLOYEES, CONTRACTORS AND AGENTS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES — INCLUDING WITHOUT LIMITATION LOSS OF DATA, LOSS OF PROFITS, OR LOSS OF GOODWILL — ARISING FROM OR RELATED TO YOUR USE OF THE SERVICE.

Specifically, we are not liable for:

- Disputes between you and other players
- Calculation errors, whether caused by app bugs or by user input
- Lost rounds, lost scores, or any data corruption
- Inability to access the Service
- Inaccurate GPS, course, rating or slope data
- Anything the people you play with do or fail to do
- Any private arrangement you make with anyone, on or off the course

In jurisdictions that do not allow the exclusion or limitation of incidental or consequential damages, our liability is limited to the maximum extent permitted by law.

Our aggregate liability to you for any claim related to the Service will not exceed the greater of USD 20.00 or the total amount you have paid us for the Service in the twelve (12) months preceding the claim.

11. Indemnification

You agree to indemnify and hold harmless Bad Golf and its owner, employees, contractors and agents from any claims, damages, losses, or expenses (including reasonable attorney's fees) arising from:

- Your use of the Service
- Your violation of these Terms
- Your violation of any applicable law
- Disputes between you and other players

12. Termination

You can stop using the Service at any time by closing the app and clearing your data.

We can suspend or terminate your access to the Service at any time, for any reason, with or without notice. We can also discontinue the Service entirely. We will try to give reasonable notice for major changes, but we are not obligated to.

13. Changes to the Terms

We may update these Terms from time to time. Material changes will be reflected by updating the "Last updated" date at the top. Continued use of the Service after a change constitutes acceptance.

If we make a change you don't agree with, stop using the Service.

14. Apple App Store

If you obtained the Service from the Apple App Store, you acknowledge that these Terms are between you and Bad Golf only, and not with Apple. Apple is not responsible for the Service or its content. Apple has no obligation to furnish any maintenance or support for the Service, and no warranty obligation whatsoever with respect to the Service. Apple is not responsible for addressing any claim you have relating to the Service, including product liability claims, any claim that the Service fails to conform to any applicable legal or regulatory requirement, or any claim arising under consumer protection or similar legislation. Apple and its subsidiaries are third-party beneficiaries of these Terms and, upon your acceptance, will have the right to enforce these Terms against you.

15. Governing law and disputes

These Terms are governed by the laws of the State of Texas, United States, without regard to its conflict-of-laws principles. Any dispute arising from these Terms or the Service will be resolved in the state or federal courts located in Rockwall County, Texas. You consent to the jurisdiction of those courts.

You waive any right to bring claims as a class action, collective action, or representative action.

16. Severability

If any provision of these Terms is found unenforceable, the remaining provisions will continue in full force and effect.

17. Entire agreement

These Terms, together with the Privacy Policy, constitute the entire agreement between you and Bad Golf regarding the Service. They supersede any prior agreements, including any prior version of these Terms.

18. Contact

Questions about these Terms:

Bad Golf — Email: support@officialbadgolf.com